

Raghoram @ Ram Sagar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 January 2021 · Writ - C No. 63 of 2021 · Writ - C No. 63 of 2021 ·
Writ dismissed; bill challenge relegated to clause 6.5.

HEADNOTE

A writ challenging the correctness of an electricity bill is not maintainable when clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 affords a statutory, alternative and efficacious remedy. Counsel for the consumer being unable to controvert that remedy, the petition was dismissed on that ground alone.

FACTUAL SUMMARY

Raghoram @ Ram Sagar filed Writ-C No. 63 of 2021 in the Allahabad High Court against the State of Uttar Pradesh and three others, seeking to challenge the correctness of an electricity bill. Counsel for the petitioner, counsel for respondent nos. 2 to 4, and the Standing Counsel for the State were heard. The petitioner's counsel did not dispute that a statutory alternative remedy under the Uttar Pradesh Electricity Supply Code, 2005 was available against the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-alternate-remedy

HOLDING

A writ petition challenging the correctness of an electricity bill is dismissed where clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 provides a statutory, alternative and efficacious remedy which the petitioner does not controvert. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against bill correctness was dismissed because clause 6.5 is a statutory, alternative and efficacious remedy. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Clause 6.5 was treated as the statutory remedy for a consumer disputing the correctness of an electricity bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Merits of the bill were not examined; the petitioner was left to clause 6.5. ¶ 1